

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
MAY 20, 2026
8:30 a.m.

2. JEFFREY STEVEN VANHEE V. ASHLEY NICHOLE VANHEE

25FL0526

This matter is before the court for hearing of the Request for Order (RFO) filed by the Respondent on April 23, 2026, to (1) modify custody and visitation; (2) enter order regarding sale of assets and deposit of assets with the Sheriff; (3) schedule expedited CCRC session; and (4) issue an order requiring Petitioner to file and serve proof of surrender of firearms. The RFO also included a request for temporary emergency orders, which the court granted on April 23, 2026, as follows: Respondent shall have temporary sole physical custody of the parties' three children, AH (age 12), NH (age 8), and HH (age 4), and Respondent shall have non-professional supervised visits at least two times per week for up to three hours per visit (with the supervisor to be selected by the Respondent).

The filing of the RFO prompted the court to refer the parties to a CCRC session set for May 05, 2026. The court also issued an order shortening time. Respondent was ordered to serve the RFO on or before April 27, 2026, and Petitioner was ordered to file and serve a Responsive Declaration on or before May 04, 2026.

Proof of service filed May 04, 2026, shows Respondent served the RFO by mail on May 01, 2026. This is untimely service under the court's order shortening time.

To date, Petitioner has filed no Responsive Declaration.

The court is in receipt of a "One Parent" CCRC report dated May 05, 2026, a copy of which was mailed to both parties on May 06, 2026, according to the Clerk's Certificate of Mailing filed that day.

Due to the untimely service of the RFO, the court denies the RFO without prejudice. The temporary emergency orders issued April 23, 2026, are hereby vacated and the pre-existing orders shall take effect.

TENTATIVE RULING #2: DUE TO UNTIMELY SERVICE, THE RFO IS DENIED WITHOUT PREJUDICE. THE TEMPORARY EMERGENCY ORDERS ISSUED APRIL 23, 2026, ARE HEREBY VACATED AND THE PRE-EXISTING ORDERS SHALL TAKE EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.